THE GOVERNMENT OF THE HONG KONG SPECIAL ADMINISTRATIVE REGION

HIGHWAYS DEPARTMENT

CONTRACT NO. HY/2022/14

MODIFICATION WORKS OF NOISE BARRIERS
ALONG YUEN LONG HIGHWAY NEAR PARK SIGNATURE

ARTICLES OF AGREEMENT made and entered into this _____day of _____2022 between the Government of the Hong Kong Special Administrative Region (hereinafter referred to as the "*Client*") and _____
{, incorporated in [the People's Republic of China]}# {with limited liability,}## of _____
([hereinafter referred to as the "*Contractor*"]*). In this agreement, words and expressions shall have the same meanings as are respectively assigned to them in the NEC4 Engineering and Construction Contract (June 2017, with amendments October 2020) published by Thomas Telford Limited (hereinafter referred to as "NEC4 ECC"), with amendments and additions, as recorded in this agreement.

WHEREAS the *Client* is desirous of having the *works* executed in accordance with the contract as defined in this agreement.

AND WHEREAS the *Contractor* has agreed to Provide the Works subject to the terms and conditions hereinafter contained.

NOW IT IS HEREBY AGREED AS FOLLOWS:

1. The contract comprises:
   (a) this agreement and its schedule;
   (b) the NEC4 ECC booklet for the NEC4 ECC main Option A, containing the NEC4 ECC core clauses and the clauses for the NEC4 ECC main Option A (including the Short Schedule of Cost Components), and the applicable secondary Options identified in the Contract Data;

(c) the Contract Data comprising:-

(i) Contract Data Part one; and

(ii) completed Contract Data Part two, as signed by the *Contractor* for identification;

(d) the Form of Tender; and

(e) the following documents:

(i) the *additional conditions of contract* identified in the Contract Data.

(ii) the documents containing the Site Information, the documents containing the Scope, the priced *activity schedule* and such other documents containing information as referred to in the Contract Data.

(iii) the letter of acceptance dated _____ and the further provisions and documents, if any, identified in the letter of acceptance as forming part of the contract.

2. The clauses referred to in clause 1(b) above shall apply to the contract as amended by the schedule to this agreement.

3. For the definition of Contract Date in NEC4 ECC core clause 11.2(4), the contract came into existence on _____[1].

4. The *Contractor* will Provide the Works in accordance with the *conditions of contract* and the *additional conditions of contract as* identified in the Contract Data.

5. The *Client* will pay the *Contractor* the amount due and carry out its duties in accordance with the *conditions of contract* and the *additional conditions of contract* as identified in the Contract Data.

[6. _____ and _____ each agrees to be jointly and severally bound by the terms of the contract.]**

Insert if the *Contractor*, or any participant to an unincorporated joint venture *Contractor*, is a non-Hong Kong company. Amend the place of incorporation as appropriate.

Insert if the *Contractor*, or any participant to an unincorporated joint venture *Contractor*, is a non-Hong Kong company whose members' liability is limited.

* In the case of an unincorporated joint venture *Contractor*, list out the names of ALL participants and replace the bracketed words by "(hereinafter referred to collectively as "the *Contractor*")"

** This Clause 6 is to be included where the *Contractor* is an unincorporated joint venture.

IN WITNESS WHEREOF these Articles of Agreement have been executed as a deed the day and year first above written

(a)	SIGNED, SEALED and DELIVERED by [insert name of sole proprietor] trading as [name of the firm] in the presence of: ..... [Name] [Occupation] [Address]	))))))))))	*[Signature of the sole proprietor]*[2] L.S.
	Or		
(b)	SIGNED, SEALED and DELIVERED by [ ][3] and [ ][3] being the partners of [name of *Contractor*] in the presence of: ..... [Name] [Occupation] [Address]	))))))))))))	*[Signature of the individual partner]*[2] L.S. *[Signature of the individual partner]*[2] L.S.
	Or		

[1] The date to be inserted should be the date of the *Client*'s letter of acceptance.
[2] The italic parts are not part of the execution clause. They are for guidance or information only.
[3] Insert name(s) of partners. Add more names if there are more partners.

(c) Executed and delivered)
as a deed and the COMMON SEAL)
of [name of *Contractor*])
was affixed in the presence of) *[Signature of the director(s)*
[ ] its [director(s) or) *etc]*[2]
director and secretary or person(s) authorized to)
sign the contract by its board of directors][4])
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Common Seal

Or

(d) Executed and delivered)
as a deed)
by [name of *Contractor*])
acting through)
[ ] (its sole director)) *[Signature of the director(s)*
or) *etc]*[2]
[ ] and)
[ ] (its directors))
or)
[ ] (its director) and)
[ ] (its company secretary)[4]
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Or

[2] The italic parts are not part of the execution clause. They are for guidance or information only.
[4] Select the correct expression for use. If none is applicable, insert an appropriate expression.

(e) SIGNED, SEALED and DELIVERED by)
[name of *Contractor*] by [ ])
his/her/its[5] attorney under power of attorney)
dated [ ])
) *[Signature of the attorney]*[2] L.S.
in the presence of:)
)
.....)
[Name])
[Occupation])
[Address])

Or

(f) #SIGNED, SEALED and DELIVERED)
by [name of participant] being a participant)
of the [name of the unincorporated joint venture])
in the presence of:)
) *[Signature of the participant]*[2] L.S.
)
)
.....)
[Name])
[Occupation])
[Address])

Or

(g) #SIGNED, SEALED and DELIVERED)
by [name of partner] and [name of partner][6]) *[Signature of the individual partner]*[2] L.S.
being the partners of [name of participant])
being a participant)
of the [name of the unincorporated joint venture])
in the presence of:) *[Signature of the individual partner]*[2] L.S.
)
)
)
)
.....)
[Name])
[Occupation])
[Address])

Or

[2] The italic parts are not part of the execution clause. They are for guidance or information only.
[5] Delete as appropriate
[6] The deed shall be executed by all the partners. Add more names if required.
Select the appropriate form or forms and REPEAT FOR EACH PARTICIPANT of the incorporated joint venture.

(h) #Executed and delivered)
as a deed and the COMMON SEAL)
of [name of participant] being a participant)
of the [name of the unincorporated joint venture])
was affixed in the presence of)
[ ] its [director(s) or) *[Signature of the director(s)*
director and secretary or person(s)) *etc]*[2]
authorized to sign the contract by its)
board of directors][4])
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Common Seal

Or

(i) #Executed and delivered)
as a deed)
by [name of participant] being a participant)
of the [name of the unincorporated joint venture])
acting through) *[Signature of the director(s)*
[ ] (its sole director)) *etc]*[2]
or)
[ ] and)
[ ] (its directors))
or)
[ ] (its director) and)
[ ] (its company secretary)[4])
)
in the presence of a witness:)
)
.....)
[Name])
[Occupation])
[Address])

Or

[2] The italic parts are not part of the execution clause. They are for guidance or information only.
[4] Select the correct expression for use. If none is applicable insert an appropriate expression.
Select the appropriate form or forms and REPEAT FOR EACH PARTICIPANT of the incorporated joint venture.

(j)	#SIGNED, SEALED and DELIVERED	)	
	by [name of participant] being a participant	)	
	of the [name of the unincorporated joint venture]	)	
	by [ ]	)	
	his/her/its[4] attorney under power of attorney	)	*[Signature of the attorney]*[2] L.S.
	dated [ ]	)	
		)	
	in the presence of:	)	
		)	
	.....	)	
	[Name]	)	
	[Occupation]	)	
	[Address]	)	

Notes for selection of sample attestation clauses in a deed for use by a single *Contractor*:
(a) For use where the *Contractor* is a sole proprietor.
(b) For use where the *Contractor* is a partnership.
(c) For use where the *Contractor* is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the *Contractor* is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the *Contractor* executes the deed under a power of attorney.

Notes for selection of sample attestation clauses in a deed for use by an unincorporated joint venture:
(f) For use where the joint venture participant is a sole proprietor.
(g) For use where the joint venture participant is a partnership.
(h) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(i) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(j) For use where the joint venture participant executes the deed under a power of attorney.

[2] The italic parts are not part of the execution clause. They are for guidance or information only.
[4] Select the correct expression for use. If none is applicable insert an appropriate expression.

SIGNED, SEALED and DELIVERED by	)		
the *Client* by	)		
[insert name and appointment of officer]	)		
in the presence of:	)		
	)	*[Signature of the officer]*[2]	L.S.
	)		
.....	)		
[Name]	)		
[Occupation]	)		
[Address]	)		

[2] The italic parts are not part of the execution clause. They are for guidance or information only.

Schedule

Core Clauses		
Clause No.	Action	Details
11.2	Delete	the whole sub-clause (5).
11.2	Add	the following after the end of the sub-clause (9): "Equipment also includes Constructional Plant as defined in clause D19 of the *additional conditions of contract.*"
11.2	Delete	"or a member of the Dispute Avoidance Board" in the second line of the sub-clause (12).
11.2	Delete	the whole sub-clause (28).
11.2	Add	a new sub-clause (33) after sub-clause (32) as follows: "(33) Imported Items are Plant and Materials imported from any place outside Hong Kong."
14.1	Add	", nor do the *Project Manager's* or the *Supervisor's* assessments, certificates or other acts or omissions" at the end of the clause.
16.1	Add	a new sub-clause 16.1A after sub-clause 16.1 as follows: "If the *Contractor*'s proposal contains or amounts to a Cost Savings Design as defined in clause F3 of the *additional condition of contract*, this clause 16 and clause 63.12 does not apply to such proposal and the *Contractor* complies with the relevant requirements set out in the *additional conditions of contract* including but not limited to clause F4 of the *additional conditions of contract*.
18	Delete	the whole clause 18.
19.1	Replace	"the *Project Manager* gives an instruction to the *Contractor* stating how the event is to be deal with" at the end of clause 19.1 by "the *Contractor* and the *Project Manager* notify the other as soon as either becomes aware of such event. Either the *Project Manager* or the *Contractor* may instruct the other to attend an early warning meeting normally arranged under clause 15.2. Each of them may instruct other people to attend if the other agrees. At the meeting, those who attend co-operate in making and considering proposals for how the effects of the event can be reduced, seeking solutions that bring advantage to all those who will be affected, and deciding on the proposed actions which will be taken and who, in accordance with the contract, will take them. The *Project Manager* provides the decision to the *Contractor* within six weeks after the meeting."
21.1 and 21.2	Replace	the words "the Scope" by "the Scope and/or the *additional conditions of contract* " in the clauses.

Core Clauses		
Clause No.	Action	Details
22.1	Replace	the whole clause 22.1 by the following new clause 22.1: "The *Contractor* shall comply with the requirements on the intellectual property rights in relation to the design and other materials and things provided by them as detailed in clause F8 of the *additional conditions of contract*."
24.3	Add	a new clause 24.3 as follows: "If any *key person* is not identified in the Contract Data, the *Contractor* submits the name, relevant qualifications and experience of each *key person* to the *Project Manager* for acceptance within two weeks of the Contract Date."
26.3	Delete	the first bullet point.
	Replace	"or" at the end of the third bullet point with a comma.
	Replace	the full-stop at the end of the fourth bullet point with a comma.
	Add	two bullet points to the end of clause 26.3 as follows: "• they do not require a Subcontractor to comply with the relevant subcontracting requirements set out in the contract or • they do not require a Subcontractor to be registered under the Registered Specialist Trade Contractors Scheme."
27.1	Replace	"its design" by "its submission, proposal, design and work" in the clause.
27.4	Add	"and the *additional conditions of contract* " to the end of the clause before the full-stop.
28.1	Replace	the whole clause 28.1 by the following new clause 28.1: "The *Contractor* shall not assign the contract or any interest in the contract without the written consent of the *Client* and any assignment shall be in a form accepted by the *Client*"
29, 29.1 and 29.2	Delete	the whole clauses 29, 29.1 and 29.2
30.2	Replace	"within one week of the date" by "within three weeks of the date" in the clause.

Core Clauses

Clause No.	Action	Details
31.2	Delete	the first sub-bullet point of the seventh main bullet point.
	Replace	"and" at the end of the eighth main bullet point with a comma.
	Replace	the full stop at the end of the ninth main bullet point with a comma.
	Add	the following main bullet points after the ninth main bullet point: "• comments and/or requirements provided by the *Project Manager* in the most recent programme."
32.2	Replace	the full-stop at the third bullet point by a comma.
	Add	a new bullet point after the third bullet point as follows: "• where there are outstanding work after Completion, at interval as decided by the *Project Manager* from Completion until completion of the outstanding work or, as the case may be, when the *Project Manager* has decided that no further revision is required, whichever is earlier."
33.1	Replace	the whole clause 33.1 by the following new clause 33.1: "The *Client* allows access to and use of each part of the Site to the *Contractor* which is necessary for the work included in the contract on its *access date*."
35.1	Replace	"two weeks" by "three weeks" in the clause.
50.2	Replace	the first sentence of the clause by the following: "The Contractor submits an application for payment in the form of a payment claim compliant with SOP Clause 5 to the Project Manager two weeks before each assessment date setting out the amount the Contractor considers is due at the assessment date."

Core Clauses

Clause No.	Action	Details
50.2A	Add	a new clause 50.2A after clause 50.2 as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of Plant and Materials which • are not individually itemised in the Activity Schedule, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site ("**Relevant Plant and Materials**"). The *Contractor* shall clearly identify in the application for payment the amount claimed and the item in the Activity Schedule to which the Relevant Plant and Materials will be included ("**Relevant Item**"), and submit to the *Project Manager* all relevant supporting documents. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Plant and Materials • are not individually itemised in the Activity Schedule, • have not been included in any completed work, and • are not prematurely delivered to and not improperly stored on the Site, the *Project Manager* may assess the amount due to the *Contractor* for such Relevant Plant and Materials by reference to rates and lump sums of the Relevant Item ("**Advance Payment for Plant and Materials**")."
50.2B	Add	a new clause 50.2B after clause 50.2A as follows: "The *Contractor* may in an application for payment referred to in clause 50.2 apply for payment of an Imported Item which is • purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at a premises in Hong Kong ("Premises") but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises. ("**Relevant Imported Item**") The *Contractor* shall clearly identify in the application for payment of the Relevant Imported Item the amount claimed and the item in the Activity Schedule to which the Relevant Imported Item relate ("**Related Item**") and submit to the *Project Manager* all relevant supporting documents, including but not limited to evidence of purchase or importation of the Relevant Imported Item, evidence of supply shortage or logistic disruptions, the original date agreed by the *Project Manager* for delivery of the Relevant Imported Item to the Site (if applicable), the address of the Premises, and photographs showing the condition of the Relevant Imported Item and the manner in which it is stored. If on the assessment date to which the application for payment relate, the *Project Manager* is satisfied that the Relevant Imported Item is

Core Clauses		
Clause No.	Action	Details
		• purchased or imported into Hong Kong ahead of time due to supply shortages or logistics disruptions; • properly and securely stored at the Premises but is not yet due to be delivered by the *Contractor* to the Site; and • clearly demarcated from any other materials at the Premises, the *Project Manager* shall assess the amount due to the *Contractor* for such Relevant Imported Item by reference to the rates and lump sums of the Related Item ("**Special Payment**")."
50.3	Replace	the whole clause 50.3 by the following new clause 50.3: "If the Contractor submits an application for payment two weeks before the assessment date, the amount due at the assessment date is the amount calculated in the manner below based on the Project Manager's assessment for each of the following items: • the Price for Work Done to Date, • plus Advance Payment for Plant and Materials, • plus Special Payment, • plus other amounts to be paid to the Contractor, • in respect of any item included in the assessment of the Price for Work Done to Date, less Advance Payment for Plant and Materials and Special Payment already made in respect of that item, if any, • less amounts to be paid by or retained from or deducted from the Contractor. The actual amount due shall be certified by the Project Manager and paid in accordance with clause 51."
50.4	Add	"two weeks" after "an application for payment" in the first sentence.
51.1	Replace	the first sentence of the clause by the following: "If the Contractor submitted an application for payment in the form of a payment claim compliant with SOP Clause 5 two weeks before the assessment date, the Project Manager certifies a payment in the form of a payment response compliant with SOP Clause 6(2) within two weeks of each assessment date. Otherwise, the Project Manager certifies a payment within two weeks of each assessment date."
51.2	Replace	the first word "Each" by "Subject to the Client's rights of set-off in law or equity, each" in the clause.
51.3	Delete	the first and second bullet point.
	Delete	", or a recommendation of the Dispute Avoidance Board" in the third bullet point.
51.4	Replace	the whole clause 51.4 by the following new clause 51.4: "Interest is calculated on a simple interest basis at the interest rate.".

Core Clauses

Clause No.	Action	Details
53.1	Replace	the whole clause 53.1 by the following: "The *Contractor* submits an application for final payment in the form of a payment claim compliant with SOP Clause 5 to the *Project Manager* no later than • four weeks after the *Supervisor* issues the Defects Certificate or a longer period to which the *Project Manager* has agreed; or • thirteen weeks after the *Project Manager* issues a termination certificate or such longer period as may reasonably be necessary as determined by the *Project Manager*. The *Project Manager* makes an assessment of the final amount due and certifies a final payment in the form of a payment response compliant with SOP Clause 6(2) within the period set out in SOP Clause 7. The *Project Manager* gives the *Contractor* details of how the amount due has been assessed. The final payment is made within three weeks of the assessment or, if a different period is stated in the Contract Data, within the period stated.
53.3	Delete	The whole clause 53.3.
53.4	Replace	the second bullet point of the clause by the following: "• a decision of the *Adjudicator* which has not been referred to the *tribunal* within four weeks of that decision."
	Delete	The last paragraph: "A change assessment becomes conclusive evidence of the final amount due under or in connection with the contract."
60.1	Replace	sub-clause (2) by the following new sub-clause (2): "The *Client* does not allow access to and use of a part of the Site by its *access date*."

Core Clauses

Clause No.	Action	Details
60.1	Replace	sub-clause (13) by the following new sub-clause (13): "One or more of the following weather conditions affecting the Site: (i) the hoisting of tropical cyclone warning signal No. 8 or above and/or its consequences adversely affecting the progress of the *works*, or (ii) Black Rainstorm Warning and/or its consequences adversely affecting the progress of the *works*, or (iii) Red Rainstorm Warning and/or its consequences adversely affecting the progress of the *works*, or (iv) Amber Rainstorm Warning and/or its consequences adversely affecting the progress of the *works*, or (v) inclement weather and/or its consequences adversely affecting the progress of the *works*."
60.1	Replace	Sub-clause (21) as follows: "A Change in Law as defined in clause A1 of the *additional conditions of contract*."
60.1	Add	Sub-clause (22) after sub-clause (21) as follows: "A shortage of labour which would have been unreasonable for an experienced contractor to have allowed for at the tender closing date."
60.1	Add	Sub-clause (23) after sub-clause (22) as follows: "A suspension or reduction in the rate of progress of the carrying out of construction work or the supply of related goods and services under the contract by the *Contractor* pursuant to SOP Clause 37."
61.4	Replace	"one week after the *Contractor*'s notification" with "six weeks for events requiring to obtain confirmation of no objection from the *Client* in accordance with clause B1 of the *additional conditions of contract*, or three weeks for other events after the *Contractor*'s notification" at the first bullet point of the first paragraph in the clause.
62.2	Replace	the first sentence by the following: "Quotations for compensation events comprise, where applicable, proposed changes to the Prices, and/or any delay to the Completion Date and/or Key Dates assessed by the *Contractor*. For the avoidance of doubt, quotations for compensation events under clauses 60.1(5), 60.1(13), 60.1(19) and 60.1(22) only comprise proposed changes to the Completion Date and/or Key Dates assessed by the *Contractor*, but not changes to the Prices."

Core Clauses

Clause No.	Action	Details
62.3	Replace	"The *Project Manager* replies within two weeks of the submission." by "The *Project Manager* replies within six weeks for events requiring to obtain confirmation of no objection from the *Client* in accordance with clause B1 of the *additional conditions of contract*, or three weeks for other events after receiving the submission." in the second sentence of the clause.
62.6	Replace	"a further two weeks" by "a further two weeks or a longer period to which the *Contractor* has agreed" in the last sentence of the clause.
63.6	Replace	the whole clause 63.6 by the following new clause 63.6: "The rights of the *Client* and the *Contractor* to changes to, where applicable, the Prices and/or the Completion Date and/or the Key Dates are their only rights in respect of a compensation event. For compensation events under clauses 60.1(5), 60.1(13), 60.1(19) or 60.1(22), the *Contractor* is only entitled to changes to the Completion Date and/or the Key Dates but not changes to the Prices. For other compensation events, the assessment of changes to the Prices, if any, is not affected by any concurrent compensation event under clause 60.1(5), 60.1(13), 60.1(19) or 60.1(22)."
63.16	Delete	the whole clause 63.16
70	Add	a new clause 70.3 after clause 70.2 as follows: "The *Contractor* procures that the title passed to the *Client* pursuant to this clause 70 is full unencumbered title."
80.1	Delete	"strikes," in the second sub-bullet point of the fifth main bullet point.
	Replace	"before the issue of the Defects Certificate ... on the Site after take over" by "which is due to breach of the contract or other default of the *Contractor*" in the sixth main bullet point.
	Replace	"activities of the *Contractor* on the Site after the termination" by "breach of the contract or other default of the *Contractor*" in the seventh main bullet point.
	Delete	The last bullet.
81.1	Delete	"unless they are stated as being *Client*'s liabilities" in the first sentence of the clause.
	Add	a new fifth bullet to the end of the clause as follows: "Events resulting from the *Contractor*'s breach of the contract or other default."
	Add	a new sixth bullet to the end of the clause a follows: "Any other liabilities not stated as being *Client*'s liabilities."

Core Clauses

Clause No.	Action	Details
82.2	Delete	the whole clause 82.2
82.3	Replace	the whole clause 82.3 by the following new clause 82.3: "The right of the *Client* to recover these costs is reduced if an event for which the *Client* was liable contributed to the costs. The reduction is in proportion to the extent that event for which that the *Client* is liable contributed, taking into account each Party's responsibilities under the contract."
83.1	Delete	the whole clause 83.1.
83.2	Add	a new sentence after the first sentence as follows: "The *Contractor* provides such insurance(s) for at least the amount(s), with deductibles (if any) specified in the Contract Data, and in the form(s) (if applicable) specified in the Scope."
83.3	Replace	"the Parties except the fourth insurance stated" by "the *Client*, the *Contractor* together with its subcontractors of all tiers" in the first line of the clause.
	Delete	the first, second and fourth row (or insurance) in the Insurance Table.
	Add	"or its subcontractors" after the words "not an employee of the *Contractor*" in the third row of insurance table.
83.4	Add	a new clause 83.4 after clause 83.3 as follows: "The *Contractor* provides the insurance against liability for death of or bodily injury to employees of the *Contractor*, and its subcontractors of all tiers if applicable, arising out of and in the course of their employment in connection with the contract to comply with the applicable law."
85.2	Add	the following new clause 85.2 after clause 85.1: "If through no fault of the *Contractor* or for reasons not attributable to the *Contractor* or its past records it becomes impracticable for the *Contractor* to provide the insurance(s) in form(s) specified in the Scope, the *Contractor* proposes to the *Project Manager* for acceptance any necessary change to the Scope for providing insurance(s) as close as practically possible to the form(s) specified. The *Contractor* submits with the proposed change a quotation for a reduction to the Prices as a result of the proposed change. If the *Project Manager* accepts the proposed change, it gives an instruction to change the Scope accordingly and the Prices are reduced as quoted."
86	Delete	the whole clause 86.
86.1	Delete	the whole clause 86.1.
86.2	Delete	the whole clause 86.2.
86.3	Delete	the whole clause 86.3.

Core Clauses		
Clause No.	Action	Details
90.5	Add	a new clause 90.5 as follows: "Termination is without prejudice to any other rights and remedies of the Parties."
91.8	Replace	the whole clause 91.8 by the following new clause 91.8: "The *Client* may terminate if any of the *Contractor*'s directors, employees, agents, Subcontractors or suppliers is convicted of an offence against any provision of the Prevention of Bribery Ordinance, Cap. 201 when conducting business in connection with the contract, unless the *Contractor* has taken all necessary measures (including by way of contractual provisions and/or providing training workshops where appropriate) to ensure that its directors, employees, agents, Subcontractors and suppliers are aware of the prohibition on offering, soliciting or accepting any advantage as defined in the Prevention of Bribery Ordinance when conducting business in connection with the contract (R22)."
93.1	Replace	"advanced payment" by "advance payment" in the last bullet point.

Secondary Option Clauses (Secondary Options X1, X7, X11, X14, X16 and X20 adopted)		
Clause No.	Action	Details
X1	Replace	the word "index" by "*index figure*" wherever it appears in all sub-clauses of this Option.
X1.1	Replace	the whole sub-clause X1.1(a) by the following new sub-clause X1.1(a): "The Base Date Index (B) is the latest available *index figure* applicable to the *base date*."
X1.1	Replace	the whole sub-clause X1.1(b) by the following new sub-clause X1.1(b): "The Latest Index (L) is the latest available *index figure* applicable to the date 42 days before the date of assessment of an amount due."
X1.1	Replace	the whole sub-clause X1.1(c) by the following new sub-clause X1.1(c): "The Price Adjustment Factor (PAF) is the total of the products of each of the calculated proportions stated in the Schedule of Proportions in the Contract Data multiplied by (L – B)/B for the *index figure* linked to it. Differences between the actual proportions of the *works* and the calculated proportions stated in the Schedule of Proportions in the Contract Data shall not constitute a compensation event."
X1.2	Replace	the first sentence of the clause by the following: "If an *index figure* is changed after it has been used in calculating a PAF, the calculation is repeated and a correction included in the next assessment of the amount due."
X1.3	Delete	the word "and" at the end of the first bullet point.
X1.3	Replace	the full stop at the end of the second bullet point by "and".
X1.3	Add	a new bullet point and a paragraph to the end of clause X1.3 as follows: "● correcting amounts, not included elsewhere, which arise from changes to *index figures* used for assessing previous amounts for price adjustment. For the purpose of this sub-clause only, the reference to "Price for Work Done to Date" shall exclude any payment for items not subject to price adjustment for inflation."
X1.5	Delete	The first bullet point.
X1.5	Delete	", for other amounts" in the second bullet point.

Secondary Option Clauses (Secondary Options X1, X7, X11, X14, X16 and X20 adopted)		
Clause No.	Action	Details
X7.3	Replace	the whole of clause X7.3 by the following: "X7.3 If the *Client* takes over a part of the *works* before Completion, the daily rate of delay damages is reduced from the date on which the part is taken over. The *Project Manager* assesses the benefit to the *Client* of taking over the part of the *works* as a proportion of the benefit to the *Client* of taking over the whole of the *works*, or as the case may be, the relevant *section* as stated in the Contract Data, not previously taken over. The daily rate of delay damages is reduced in this proportion."
X7.4	Add	the following clause X7.4: "Notwithstanding clause X7.3, the resulting rate for each day of delay damages for the *works* or any *section* after the reduction under clause X7.3 shall not be less than the minimum rate per day of delay damages for the *works*, or as the case may be, the relevant *section* as stated in the Contract Data."
X11.2	Replace	"A1, A2 and A4" by "A1 and A2" in the clause.
X14	Replace	the title and sub-title of "Advanced payment" to "Advance payment"
X14.1	Replace	the whole X14.1 by the following: "The *Contractor* may request the *Client* to make an advance payment to the *Contractor* of the amount stated in the Contract Data."
X14.2	Replace	the whole X14.2 by the following new clause X14.2(a) to (d): "(a) The *Contractor* submits to the *Project Manager* a statement requesting payment of the advance payment after execution of the Articles of Agreement ("Advance Payment Statement"). (b) The *Project Manager* certifies payment within one week of the date of receipt of the Advance Payment Statement if the *Project Manager* is satisfied that the *Contractor* has duly executed the Articles of Agreement. (c) The *Client* pays the advance payment to the *Contractor* within three weeks from the date the *Project Manager* certifies the Advance Payment Statement for payment. If a certified payment is late, or if a payment is late because the *Project Manager* does not certify payment which he should certify, no compensation event arises and no interest is payable on such late payment. (d) The Advance Payment Statement shall be submitted together with a declaration signed by the *Contractor* in a form prescribed and accepted by the *Client* to confirm compliance with the provisions on ethical commitment and confidentiality in Clauses A3 and D15. If the *Contractor* fails to submit the duly signed declaration with the Advance Payment Statement, the *Client* shall be entitled to withhold payment until such declaration is submitted and the *Contractor* shall not be entitled to interest in that period."

Secondary Option Clauses (Secondary Options X1, X7, X11, X14, X16 and X20 adopted)		
Clause No.	Action	Details
X14.3	Replace	"advanced payment" by "advance payment".
X16.2	Replace	the whole clause X16.2 by the following: "(i) The amount retained is halved • in the next assessment made after the Completion of the whole of the *works* or • in the next assessment after the *Client* has taken over the whole of the *works* if this is before Completion of the whole of the *works*. (ii) The remaining amount retained following reduction in accordance with sub-clause (i) above ("the halved retained amount") is further reduced in the next assessment following the *defects date* by the halved retained amount minus the anticipated cost of rectification of the Defects requiring for correction as at the *defects date* as assessed by the *Project Manager*. (iii) The remaining amount retained following reduction in accordance with sub-clause (ii) remains unaltered until the Defects Certificate is issued. No amount is retained in the assessments made after the Defects Certificate has been issued."
X16.3	Delete	the whole clause X16.3.

Short Schedule of Cost Components

Clause No.	Action	Details
11	Delete	the whole item 11.
21	Delete	the whole item 21.
22	Delete	the whole item 22.
23	Delete	the whole item 23.
24 and 25	Replace	"Unless the item is in the published list and the rate includes the cost component" by "If not included in the competitively tendered or open market rates under item 27"
26	Replace	"Unless included in the rate in the published list" by "If not included in the competitively tendered or open market rates under item 27"
27	Delete	"which is neither in the published list stated in the Contract Data nor listed in the Contract Data," after "Amounts for Equipment.
41	Replace	the whole item 41 by the following: "Payments to Subcontractors for work which is subcontracted without taking into account any amounts deducted by the *Contractor* for any direct payment for settlement of an Adjudicated Amount under Relevant Subcontract pursuant to clause 43(4)(e) of the Security of Payment Provisions for Relevant Subcontracts as incorporated in the Relevant Subcontract."
52	Delete	the full-stop at the end of item 52.
	Add	", but excluding the *Contractor*'s payment of levies to the Pneumoconiosis Compensation Fund Board under the Pneumoconiosis and Mesothelioma (Compensation) Ordinance (Cap. 360), and that to the Construction Industry Council under the Construction Workers Registration Ordinance (Cap. 583) and Construction Industry Council Ordinance (Cap. 587)." at the end of item 52.
6 and 61	Delete	the whole items 6 and 61.
7, 71 and 72	Delete	the whole items 7, 71 and 72.

Short Schedule of Cost Components

Clause No.	Action	Details
8A	Add	a new item 8A entitled "Insurance premium" as follows: "The cost of premiums for the following insurances: ● insurances against liability for loss of or damage to property (except the *works*, Plant and Materials and Equipment) and liability for bodily injury to or death of a person (not an employee of the *Contractor* or its subcontractors) arising from or in connection with the *Contractor* Providing the Works ● professional indemnity insurances for the design of any part or all of the *works* to be carried out by or on behalf of the *Contractor* and the design or checking of the design of any part or all of the *works* by the Designer and Independent Checking Engineer appointed or engaged by the *Contractor* ● insurances against liability for death of or bodily injury to employees of the *Contractor* and its subcontractors arising out of and in the course of their employment in connection with the contract."

[BLANK PAGE]